

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALAIN BROWN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER RONNY
R. VALDEZ, SERGEANT JOHN TRIPODI, POLICE
OFFICER JOSHUA GANSHAW (Shield # 8463),
POLICE OFFICER QUACY BASTON (Shield #
9346), SERGEANT BRIAN TIERNAN (Shield # 580),
“JOHN DOE” NYPD OFFICERS 1-10 (names and
number of whom are currently unknown),

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

February 3, 2023

Yours, etc.

TROLMAN GLASER CORLEY &
LICHTMAN, P.C.

~//s//~

 Jeffrey A. Lichtman
 Michael A. Madonna, Sr.
Co-Counsel for Plaintiff
 747 Third Avenue, 23rd Floor

New York, New York 10017
212-750-1200
mmadonna@tgllaw.com
jlichtman@tgllaw.com

David A. Roth
Elliot Shields
ROTH & ROTH LLP
Co-Counsel for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10016
(212) 425-1020

TO: CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY
10007
POLICE OFFICER RONNY R. VALDEZ, HWY DIST COLLISION, 2 BRONX RIVER
PARKWAY, BRONX, NY 10462
SERGEANT JOHN TRIPODI, 2900 FLATBUSH AVE, BROOKLYN, NY 11234
POLICE OFFICER JOSHUA GANSHAW (SHIELD # 8463), 75TH PRECINCT, 1000
Sutter Ave, Brooklyn, NY 11208
POLICE OFFICER QUACY BASTON (SHIELD # 9346), 75TH PRECINCT, 1000
Sutter Ave, Brooklyn, NY 11208
SERGEANT BRIAN TIERNAN (SHIELD # 580), BROOKLYN NORTH PRECINCT,
WARRANT SECTION, 245 GLENMORE AVENUE, BROOKLYN, NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALAIN BROWN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER RONNY R. VALDEZ, SERGEANT JOHN TRIPODI, POLICE OFFICER JOSHUA GANSHAW (Shield # 8463), POLICE OFFICER QUACY BASTON (Shield # 9346), SERGEANT BRIAN TIERNAN (Shield # 580), "JOHN DOE" NYPD OFFICERS 1-10 (names and number of whom are currently unknown),

Defendants.

Case No:**COMPLAINT****PLAINTIFF DEMANDS A
TRIAL BY JURY**

Plaintiff, by his attorneys, TROLMAN GLASER CORLEY & LICHTMAN, P.C. and ROTH & ROTH, LLP., complaining of the Defendants, respectfully allege, upon information and belief:

I. Preliminary Statement

1. As reported by the Bureau of Justice Statistics of the United States Department of Justice:

According to the National Highway Traffic Safety Administration's Fatality Analysis Reporting System, there were more than 6,000 fatal [police] pursuit-related crashes from 1996 to 2015. More than 7,000 persons died during this period for an average of 355 per year (about 1 per day). The number of pursuit-related deaths peaked in 2006 and 2007, with more than 400 each year. Nearly two-thirds (65%) of pursuit-related fatalities involved occupants of the pursued vehicle. A third of those killed were occupants of a vehicle not involved in the pursuit (29%) or bystanders not in a vehicle (4%). Slightly more than 1% of the fatalities were occupants of the pursuing police vehicle.

See https://www.bjs.gov/content/pub/pdf/pvp1213_sum.pdf. Given this carnage, the majority of local police departments (71%), sheriffs' offices (63%), and state law enforcement agencies (53%) have a policy that restricts pursuits based on specific criteria, such as speed, type of offense, and surrounding conditions. *Id.* Many law enforcement organizations, including the New York City Police Department, warn their officers that the mere fact that a subject flees is not grounds for initiating or continuing a pursuit. There is now a growing consensus that police should only chase persons guilty of violent felony offenses, and only then when the chase poses no danger to the general public. This makes sense. Given the documented, fatal risks of police pursuits to officers, the pursued subject, innocent third parties and the general public, a pursuit should be initiated and continued only if the risks of letting the subject go outweigh the extreme risks of a high-speed police chase on public roads.

2. But as set forth below, ALAIN BROWN, was pursued at a high speed by the defendant NYPD officers through residential neighborhoods in Brooklyn and Queens. The defendant officers rammed the rear of plaintiff's car multiple times with their vehicle during the chase. The chase ended when the plaintiff lost control of his vehicle and crashed into several parked cars, causing plaintiff to suffer severe, life-threatening injuries. Mr. Brown survived the crash, but he suffered a fractured spine and is permanently paralyzed from the waist down.

3. Both the initiation and continuation of the chase were acts that were intended to cause harm unrelated to the state interest in addressing the initial offense and therefore shock the conscience. Plaintiff seeks an award of actual and punitive damages to compensate Mr. Brown for his injuries and to deter this type of irresponsible law enforcement misconduct.

II. Parties

4. Plaintiff Alain Brown was and is a resident of Queens County, New York.

5. Defendant City of New York (“City”) is a municipal corporation, incorporated pursuant to the laws of the State of New York.

6. Defendant CITY maintains the New York Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

7. POLICE OFFICER RONNY R. VALDEZ, SERGEANT JOHN TRIPODI, POLICE OFFICER JOSHUA GANSHAW (Shield # 8463), POLICE OFFICER QUACY BASTON (Shield # 9346), SERGEANT BRIAN TIERNAN (Shield # 580), “JOHN DOE” NYPD OFFICERS 1-10” (names and number of whom are unknown at this time), were at all times relevant to this complaint, duly sworn police officers of the NYPD, acting under the supervision of the NYPD and according to their official duties. Plaintiffs assert their claims against VALDEZ, TRIPODI, GANSHAW, BASTON, TIERNAN and the John Does in both their official and individual capacities.

8. Defendants “John Does 1–10” were those officers who were part of the group of members of service of the NYPD that participated in the initial police encounter and subsequent vehicular pursuit of the plaintiff.

9. That at all times hereinafter mentioned, POLICE OFFICER RONNY R. VALDEZ, SERGEANT JOHN TRIPODI, POLICE OFFICER JOSHUA GANSHAW (Shield # 8463), POLICE OFFICER QUACY BASTON (Shield # 9346), SERGEANT BRIAN TIERNAN (Shield # 580), “JOHN DOE” NYPD OFFICERS 1-10” (Collectively, “Defendant POLICE OFFICERS,” individually, “Defendant POLICE OFFICER”), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times relevant herein, the Defendant POLICE OFFICERS either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said Defendants while acting within the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY.

12. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting in furtherance of their employment by Defendant CITY.

13. Plaintiff, in furtherance of his causes of action brought pursuant to New York State law, filed a Notice of Claim against the CITY, in compliance with the Municipal Law Section 50, and the Defendant CITY OF NEW YORK held a 50-h hearing on April 12, 2022.

14. On November 21, 2022, the Honorable Consuelo Mallafre Melendez, Supreme Court, Kings County, granted plaintiff’s motion to file a late notice of claim, nunc pro tunc.

15. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY has failed to pay or adjust the claim.

16. The state law negligence claims are timely as this action is being filed within 90 days of Justice Melendez's November 21, 2022 order.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

III. Facts

19. On June 15, 2021, at approximately 8:00 a.m., plaintiff was lawfully present in his parked vehicle on the street in the vicinity of 363 Howard Avenue, Brooklyn, New York.

20. Suddenly, without warning, several defendant NYPD officers, including but not limited to PO Ronny R. Valdez and Sgt. John Tripodi, surrounded plaintiff's vehicle with their guns drawn.

21. At no time did plaintiff commit a crime, and the defendants did not have facts to support reasonable or probable cause to believe that plaintiff committed a crime.

22. At no time did the defendant police officers have a warrant for plaintiff's arrest.

23. Suddenly, without warning, plaintiff heard what sounded like a firearm being discharged, and so he fled in his vehicle.

24. The defendant officers, including PO Ronny R. Valdez and Sgt. John Tripodi, pursued plaintiff's vehicle at a high rate of speed.

25. During the pursuit, the vehicle being operated by Valdez and/or Tripodi "rammed" and/or "bumped" into the rear of plaintiff's vehicle several times.

26. Defendants pursued plaintiff's vehicle through crowded residential streets in Brooklyn and Queens at an unsafe and high rate of speed.

27. The duration of the pursuit gave defendants plenty of time to consider the unreasonable risks they were undertaking, and to which they were subjecting plaintiff and the general public, in a chase initiated because of an alleged minor crime.

28. Eventually, because of the actions of defendants, plaintiff was caused to lose control of his vehicle and crash into several parked cars in the vicinity of Pitkin Avenue and 79th Street in Queens, New York.

29. The defendants violated city and state traffic laws, as well as the NYPD patrol guide, in initiating and continuing the high speed chase in the crowded residential neighborhoods.

30. Specifically, defendants violated NYPD Patrol Guide Procedure No. 221-15 in initiating and continuing the vehicle pursuit.

31. Defendants also violated NYPD Patrol Guide Procedure No. 221-15 by ramming the back of plaintiff's vehicle with their police cruiser.

32. At no time did plaintiff commit any crime, and the defendants did not have a lawful reason to seize or arrest plaintiff in the first instance.

33. Plaintiff, who was belted in the vehicle, was knocked unconscious in the impact. Plaintiff had to be manually extricated from the vehicle and rushed to the emergency room at Jamaica Hospital.

34. Plaintiff remained hospitalized for approximately nine months, until March 2022. Plaintiff suffered a fractured spine and is permanently paralyzed from the waist down.

35. Plaintiff was falsely arrested, handcuffed to a hospital bed, and charged with crimes that he did not commit.

36. The Kings County District Attorney declined to prosecute Mr. Brown.

37. Upon information and belief, the reason the Kings County District Attorney declined to prosecute Mr. Brown is because he was not the subject of any warrant and the defendants lacked probable cause to believe he had committed any crime.

V. Causes of Action

FIRST CAUSE OF ACTION **Unlawful Seizure / False Arrest** ***Pursuant to 42 U.S.C. § 1983***

38. All preceding and subsequent paragraphs are incorporated by reference.

39. Defendants did not have a warrant authorizing them to seize plaintiff on June 15, 2021.

40. Defendants seized Plaintiff, restricting his freedom of movement, without privilege or lawful justification.

41. Plaintiff was conscious of their confinements by Defendants.

42. Plaintiff did not consent to being confined by Defendants.

43. Defendants did not have reasonable or probable cause to seize, detain, or arrest Plaintiff.

44. No reasonable law enforcement officer would have believed they had reasonable or probable cause to seize, detain, or arrest Plaintiff.

45. As a result of the foregoing, Plaintiff suffered severe and permanent injuries and damages.

46. Defendants' actions were willful, malicious, oppressive, and/or reckless, and were of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
Failure to Train Pursuant to 42 U.S.C. § 1983
under the Fourth and Fourteenth Amendments

47. All preceding and subsequent paragraphs are incorporated by reference, and are deemed repeated, realleged and reiterated as if set forth at length herein.

48. Prior to the events described above, the City was on notice that too many instances occur where police pursuits create greater danger to the public than the violations it is seeking to address through enforcement, and that the clear majority of that danger was created by high-speed pursuits stemming from minor offenses.

49. That is why, per departmental policy, officers must terminate a pursuit whenever the risks to them and the public "outweigh the danger to the community if suspect is not immediately apprehended," per NYPD Patrol Guide Procedure No. 221-15.

50. Despite NYPD Patrol Guide Procedure No. 221-15, the City continues to permit the majority of all high-speed pursuits in which it engages to stem from minor offenses and those

pursuits continue to cause the greatest numbers of property damage and bodily injuries to suspects, police, innocent bystanders, passengers and others.

51. The City thus maintains a widespread custom of permitting its police officers to initiate and maintain high-speed pursuits for minor offenses.

52. In this case, despite being aware of the risks of injuries to person and property because of high-speed pursuits, the City failed to train, supervise or discipline its police officers with respect to high-speed pursuits, including pursuits that are initiated because of minor offenses.

53. The City also failed to properly implement, enforce or maintain a policy for traffic stops and police pursuits and/or failed to train, supervise or discipline its police officers such that high-speed pursuits through populated public thoroughfares would be avoided.

54. The City's widespread custom and failure to train, supervise or discipline its police officers on how and when to engage in high-speed pursuits, and on how and when to terminate or abandon high-speed pursuits, results in significant property damage and bodily injuries to suspects, police, innocent bystanders, passengers and others on an annual basis.

55. Because the City failed to train, supervise or discipline its police officers on how and when to engage in high-speed pursuits, and on how and when to terminate or abandon high-speed pursuits, the defendants initiated and maintained a high-speed pursuit of plaintiff over an alleged minor, nonviolent offense.

56. The City's failure to provide training, supervision or discipline to any individual officers, including the defendants, on how and when to engage in high-speed pursuits, and on how and when to terminate or abandon high-speed pursuits, demonstrates its deliberate indifference to

the known or obvious consequence that such a failure to train, supervise or discipline would cause plaintiff's federally protected constitutional right to bodily integrity under the Fourth and Fourteenth Amendments to be violated.

57. As a direct and proximate cause of the City's failure to provide training, supervision or discipline to any individual officers on how and when to engage in high-speed pursuits, and on how and when to terminate or abandon high-speed pursuits, including the defendants, plaintiff suffered actual physical injuries, mental anguish and suffering, personal humiliation and other damages described herein, entitling her to compensatory and special damages in an amount to be determined at trial.

THIRD CAUSE OF ACTION
Negligence

58. All preceding and subsequent paragraphs are incorporated by reference, and are deemed repeated, realleged and reiterated as if set forth at length herein.

59. Defendants had a duty not to initiate a vehicle pursuit without probable cause to believe that plaintiff had committed crime.

60. Defendants had a duty not to initiate a vehicle pursuit unless it was safe to do so and warranted under the totality of the circumstances.

61. Defendants had a duty to drive with due regard for the safety of all persons, including the drivers of vehicles involved in high-speed pursuits.

62. Defendants breached their duty to plaintiff in that they:

- a. Initiated and maintained a high-speed pursuit over an alleged minor offense that plaintiff did not commit, when there was no necessity to immediately apprehend

plaintiff even if he had committed said minor offense, when compared to the substantial risk of serious bodily harm the pursuit created;

- b. Initiated and maintained a high-speed pursuit of plaintiff over an alleged minor offense in a crowded residential neighborhood;
- c. Initiated and maintained a high-speed pursuit of plaintiff over an alleged minor offense, after they had surrounded plaintiff's vehicle with guns drawn, for no reason, causing plaintiff to flee from law enforcement;
- d. Failed to terminate the pursuit when they knew they were required to do so under the circumstances;
- e. Failed to terminate the pursuit when they knew they were required to do so NYPD Patrol Guide Procedure No. 221-15;
- f. Operated their emergency vehicles in an unreasonable and unsafe manner, creating a life-threatening hazard and plaintiff and the public to unnecessary and unwarranted harm;
- g. Failed to adhere to all applicable laws, statutes and regulations governing operators of emergency vehicles during the pursuit;
- h. Engaged in a police pursuit that created a greater danger to the public than the alleged violation they were seeking to address through enforcement;
- i. Initiated a high-speed pursuit where they knew that the alleged offending vehicle was not involved in a violent, felony crime for which the pursuit was initiated;
- j. Drove in a reckless manner by pursuing the vehicle being driven by plaintiff at high rates of speed through heavily trafficked residential and commercial areas and through various traffic control devices and intersections without exhibiting the requisite caution before doing so;
- k. Used their police vehicle to "ram" into the back of plaintiff's vehicle during the police pursuit, in violation of NYPD Patrol Guide Procedure No. 221-15;
- l. Drove through heavily trafficked areas during morning rush hour, without due regard for the safety of others; and
- m. Failed to adequately control their vehicles while engaging in the high-speed pursuit.

63. Plaintiff's injuries were a direct and proximate result of defendants' grossly negligent and/or reckless operation of their police vehicles.

64. The CITY, as the employer of the Individual Defendants, is responsible for their negligence under the doctrine of *respondeat superior*.

65. Defendants' actions were grossly negligent, malicious, oppressive, and/or reckless, and were of such a nature that punitive damages should be imposed.

66. As a direct and proximate result of the defendants' negligence, plaintiff suffered serious and permanent physical injuries, mental anguish and suffering, personal humiliation and other damages described herein, entitling him to compensatory and special damages in an amount to be determined at trial.

WHEREFORE and in light of the foregoing, Plaintiff demands judgment, with interest, costs, fees and attorney's fees and on all claims for relief:

- a. Empanel a jury;
- b. Award compensatory and punitive damages;
- c. The Plaintiff demands the foregoing relief jointly and severally against all of the defendants;
- d. The limitations of CPLR Article 16 are not applicable herein;
- e. Such other and further relief as the court may deem just and proper.

Dated: New York, New York
February 3, 2023

Respectfully Submitted,

TROLMAN GLASER CORLEY &
LICHTMAN, P.C.

~//s//~

Jeffrey A. Lichtman
Michael A. Madonna, Sr.
Co-Counsel for Plaintiff
747 Third Avenue, 23rd Floor
New York, New York 10017
212-750-1200
mmadonna@tgllaw.com
jlichtman@tgllaw.com

David A. Roth
Elliot Shields
ROTH & ROTH LLP
Co-Counsel for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10016
(212) 425-1020

ATTORNEY'S VERIFICATION

MICHAEL A. MADONNA, Sr. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm Trolman Glaser Corley & Lichtman, P.C., attorneys for the Plaintiff, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, based on the files maintained in my office, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. This verification is made by me and not the Plaintiff because I maintain my office in a different county from where the Plaintiff resides.

DATED: New York, New York
February 3, 2023

Michael A. Madonna
MICHAEL A. MADONNA, Sr.